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LINE 6

25-CIV-09845

JEWISH LEGAL NEWS, INC. VS. CABRILLO UNIFIED SCHOOL DISTRICT, ET AL.

JEWISH LEGAL NEWS, INC.
CABRILLO UNIFIED SCHOOL DISTRICT

MARK L. JAVITCH
RICHARD W OSMAN

RESPONDENTS SOUTH SAN FRANCISCO UNIFIED SCHOOL DISTRICT AND LA HONDA-PESCADERO UNIFIED SCHOOL DISTRICT'S DEMURRER TO PETITIONER'S AMENDED VERIFIED PETITION FOR WRIT OF MANDATE FOR VIOLATIONS OF THE CALIFORNIA PUBLIC RECORDS ACT

TENTATIVE RULING:

On October 20, 2025, Petitioner submitted California Public Records Act (CPRA) requests to Respondents seeking the Ethnic Studies curriculum taught during the 2024–2026 school years—specifically, “all instructional materials, including classroom slides, assignments, handouts, resources, texts.” (Petition, Ex. A.)

The request specifically stated: “To minimize the burden of production, I am not asking for any documents to be produced, instead I am asking for a login to the existing software used to facilitate assignments, slides and homework electronically.” (Petition, Ex. A.)

The Petition alleges that Respondents did not produce the curriculum and did not provide access to the platforms where it is maintained. (Petition ¶¶ 40–41.)

Accordingly, Petitioner alleges that Respondents violated the CPRA (first cause of action) and seeks related declaratory and injunctive relief (second cause of action).

LEGAL ANALYSIS

1. The CPRA Does Not Require a Public Entity to Grant a Requesting Party Access to Its Computer Systems

Respondents' primary argument is that Petitioner's demand for login credentials for ongoing "observer access" to an educational software platform does not identify any specific record; it instead seeks an open-ended inspection regime over the entire system and all content within it. The CPRA does not require Respondent's to grant that request, and a petition demanding access to an entire software ecosystem, rather than copies of specific records extracted from it, seeks relief that falls entirely outside that statutory purpose of the CPRA. Respondents also argue that they only have the duty to produce non-exempt records, which determination is made prior to disclosure. Petitioner's request would result in the production of both exempt and non-exempt records.

Respondents' argument is supported by the statutory framework of the CPRA.

Under the CPRA, "each state or local agency, upon a request for a copy of records that reasonably describes an identifiable record or records, shall make the records promptly available to any person upon payment of fees covering direct costs of duplication." (Gov. Code § 7922.530.) Thus, the CPRA creates "a presumptive right of access to any record created or maintained by a public agency that relates in any way to the business of the public agency." (*Sander v. State Bar of California* (2013) 58 Cal.4th 300, 323.)

"Public records" are defined as "any writing containing information relating to the conduct of the public's business prepared, owned, used, or retained by any state or local agency regardless of physical form or characteristics." (Gov. Code, § 7920.530, subd. (a).)

Login credentials and access to the Respondents' computer programs and/or infrastructure are not "writings" containing information; they are a means by which the agency stores and manages its records. A demand for system access is therefore not a request for a public record within the meaning of the CPRA, even if Petitioner seeks to use such access to locate documents for which disclosure under the CPRA is appropriate. Further, the demand does not allow for the segregation or redaction of non-exempt records.

Further, the CPRA contemplates that the agency – *not the requester* – conducts the search for responsive records and then makes those records available:

[E]ach state or local agency, upon a request for a copy of records that reasonably describes an identifiable record or records, shall make the records promptly available to any person upon payment of fees covering direct costs of duplication, or a statutory fee if applicable.

(Gov. Code, § 7922.530, subd. (a).)

In *City of San Jose v. Superior Court* (2017) 2 Cal.5th 608, 627-629, the Supreme Court addressed processes that may be adopted by a public agency for conducting searches responsive to CPRA requests, including communicating the scope of the information requested to the custodians of its records or, if the request seeks records held in an employee's nongovernmental account, communicating the request to the employee in question, and training employees how to respond to records requests, how to prepare accompanying affidavits, and how to segregate their public records from personal records. There was no suggestion that a requestor may demand to conduct the search themselves by accessing agency systems.

Courts have consistently held that while the CPRA requires public agencies to provide access to their existing records, it does not require them to create new records to satisfy a request. (*See National Lawyers Guild v. City of Hayward* (2020) 9 Cal.5th 488, 502 [holding that agencies need not create records or "generate new substantive content to respond to a PRA request."]; *Sander v. Superior Court* (2018) 26 Cal.App.5th 651, 660 [holding that compelling an agency to undertake programming or data manipulation to restructure the substantive content of records goes far beyond CPRA's requirements].) "The basic rule is that an agency must comply with a

request if responsive records can be located with reasonable effort.” (*Sander v. Superior Court* (2018) 26 Cal.App.5th 651, 666.) Providing system access to a requestor so the requestor can conduct their own search would go far beyond this obligation

Petitioner provides no argument or authority supporting that Respondents are required to provide system access in response to Petitioner’s CPRA request.

Accordingly, as a matter of law, Respondents did not violate the CPRA by failing to provide Petitioner with “a login for existing software used to facilitate assignments, slides and homework electronically,” as specifically requested.

2. *Respondents Did Not Fail to Produce Documents Under the CPRA Because Petitioner’s Request Clearly Stated that It Was Not Asking for Document Production*

As noted above, Petitioner provides no argument or authority supporting that Respondents are required to provide system access in response to Petitioner’s CPRA request. Rather, Petitioner’s primary argument is that Respondent’s demurrer fails because it attacks only a portion of Petitioner’s first cause of action.

Petitioner explains that the first cause of action includes two alternative theories: (1) that Respondents refused observer access, and (2) in the alternative, Respondents failed to produce the records requested. Indeed, the Petition does allege this alternative theory:

Respondents unlawfully refused to provide access to the online platform where the curriculum is maintained, or in the alternative, failed to produce those records, despite the CPRA’s requirement to permit inspection in the format in which records are held.

(Petition, at ¶ 40.) Petitioner argues that Respondents violated the CPRA by failing to address the alternative, i.e. that they failed to produce the records requested, notwithstanding any denial of system access.

Under the doctrine of truthful pleading, a court may sustain a demurrer where the factually allegations in a pleading are inconsistent with a document attached to that pleading. As the Court of Appeal has explained:

As a general rule in testing a pleading against a demurrer the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Griffith v. Department of Public Works*, 141 Cal.App.2d 376, 296 P.2d 838.) The courts, however, will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed. (*Alphonzo E. Bell Corp. v. Bell View Oil Syndicate*, 46 Cal.App.2d 684, 116 P.2d 786; *Chavez v. Times Mirror Company*, 185 Cal. 20, 195 P. 666.) Thus, a pleading valid on its face may nevertheless be

subject to demurrer when matters judicially noticed by the court render the complaint meritless.

(*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

“[T]he contents of any exhibits attached to the complaint . . . take precedence over and supersede any inconsistent or contrary allegations set out in the pleading.” (*Building Permit Consultants, Inc., v. Mazur* (2004) 122 Cal.App.4th 1400, 1409.)

Petitioner argues that “the alternative is pleaded in the operative Petition, which is the only document the demurrer tests.” (Opposition, 4:12-15.) However, under the truthful pleading doctrine, exhibits attached to a pleading are incorporated into the pleading and take precedence over inconsistent facts alleged in the pleading. (*Building Permit Consultants*, supra, 122 Cal.App.4th at 1409.) Petitioner’s CPRA request letter, attached to the Petition, explicitly requested only platform access: “***I am not asking for any documents to be produced, instead I am asking for a login to the existing software used to facilitate assignments, slides, and homework electronically.***” (Petition, Exhibit A, CPRA Request Letters [emphasis added].)

Respondents characterize Petitioner’s alternative records theory pleaded in the Petition as “post-hoc reframing.” (MPA, at p. 6.) Petitioner rejects that contention and explains that “[a] requester’s preferred form of production does not convert a valid request for identifiable records into an invalid one.” (Opposition, 4:18-19.)

The Court agrees with Respondents. Petitioner’s request for online access was not merely its “preferred form of production.” Rather, Petitioner expressly disclaimed a request for production and demanded only direct access to Respondents’ electronic systems: “I am not asking for any documents to be produced, instead I am asking for a login to the existing software used to facilitate assignments, slides, and homework electronically.” (Petition, Exhibit A, CPRA Request Letters) In no uncertain terms, Petitioner’s request was for system access, not for the production of records. Thus, Petitioner’s first cause of action, as pleaded in the alternative, seeks a remedy for Respondents’ alleged failure to fulfil a request that Petitioner did not in fact make.

Accordingly, as a matter of law, Respondent did not fail to timely produce records under the CPRA.

Respondents’ demurrer is SUSTAINED, without leave to amend. Although leave to amend is liberally allowed, such leave should not be granted where, in all probability as it appears to be in this case, amendment would be futile. (*Foroudi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1001.) Amendment appears to the court to be futile in this case based upon the request made. It is the burden of the party seeking leave to amend to show the possibility that amendment can cure the legal defects of the pleading. (*Frayo v. Martin* (2024) 102 Cal.App.5th 1025, 1033.) Therefore, if plaintiff believes that it has facts sufficient to support amendment, Petitioner’s counsel shall properly contest the tentative ruling and provide those facts at the hearing. Absent that showing, the Court sustains the demurrer without leave to amend.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Respondents shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 7

25-CIV-09945

JOSEPH SIGUIG VS. WEHOPE

JOSEPH SIGUIG
WEHOPE

JASON M ERLICH

PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (GENERAL AND EMPLOYMENT); REQUEST FOR SANCTIONS

TENTATIVE RULING:

Plaintiff Joseph Siquig's Motion to Compel Further Responses to Form Interrogatories (General and Employment) is ruled upon as follows:

On December 19 2025, Plaintiff filed his complaint. Thereafter on March 21, 2026, Plaintiff propounded Form Interrogatories (General), Set One, and Form Interrogatories (Employment), Set One. (Lacques Decl., ¶2, Exhs. 1, 2.)

Defendant WeHope, Inc. served its initial responses to both sets of Form Interrogatories on May 2, 2026. (*Id.*, at ¶3, Exhs. 3, 4.) The parties met and conferred by email regarding the discovery responses after Plaintiff determined that responses to General Form Interrogatories Nos. 4.1, 12.2, 12.3, 13.1, and 13.2 and Employment Form Interrogatories Nos. 200.4, 209.2, 211.1, and 214.1 were insufficient, and Defendant through counsel agreed to provide amended responses to only Employment Form Interrogatories Nos. 211.1 and 214.1 by May 19, 2026 and extend the deadline to file a motion to compel from the statutory deadline to July 8, 2026.. (*Id.*, at ¶¶3-8.) Defendant served supplemental responses on May 19, 2026. (*Id.*, at ¶10, Exh. 8.)

As an initial matter, the Court notes that defendant WeHope, Inc. has not yet filed a responsive pleading in the action. A plaintiff may propound interrogatories to a party without leave of court, however, at any time that is ten days after the service of the summons on, or appearance by, that party, whichever occurs first." (Code Civ. Proc., § 2030.020, subd. (b).) Plaintiff was therefore entitled to propound interrogatories, and the present Motion is authorized. Plaintiff filed a Proof of Service by substitute service of the amended Summons and Complaint on March 6, 2026, and Defendant has not moved to quash that service. Additionally, Defendant served initial and amended discovery responses to Plaintiff's propounded discovery which did not include objections to the court's jurisdiction and did include substantive responses. (Lacques Decl., ¶¶3, 10-11.) This participation in the merits of the action recognizes the court's authority and independently amounts to a general appearance. (See, e.g. *Roy v. Superior Court* (2005) 127 Cal.App.4th 337, 341, citing *Creed v. Schultz* (1983) 148 Cal.App.3d 733, 740.) The Court therefore has personal jurisdiction over Defendant WeHope, Inc.

Plaintiff's Reply brief references an Opposition, but that Opposition is not in the court file. Instead, on August 18, 2026, the court clerk rejected the filing because there had not been a first
